

United States v. Alvarez - Sentencing Memorandum and Objections

Sentencing Memorandum and Objections in United States v. Alvarez. Procedural posture:

Defendant filed a timely criminal notice of appeal after a within-Guidelines sentence; the government invokes an appellate waiver while defendant challenges Guidelines calculation and allocution. Record material: The presentence report recommended a two-level leadership enhancement based on disputed statements from co-defendants.

Issue: Allocution and mitigation explanation. Standard of review: abuse of discretion with procedural reasonableness review. Record excerpt: PSR leadership enhancement excerpt. The PSR applies a two-level enhancement based on co-defendant statements that Alvarez directed deliveries and collected proceeds. Nature of suit: Criminal - Sentencing. Lower tribunal: U.S. District Court for the Eastern District of North Carolina.